

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JUNJUN LUO,

Petitioner

VS.

ZHENG CHIU CHAN,

Respondent

) Case Number: FDI-26-802522

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Junjun Luo and Respondent Zheng Chiu Chan.
- 2) On 1/29/26, Petitioner filed a Petition for Dissolution indicating the date of marriage is 3/11/19 and date of separation is 10/3/25 for a marriage of 5 years and 6 months.
- 3) On 1/29/26, Petitioner filed a Request for Order seeking orders for spousal support and attorney fees. Petitioner requests \$2,500 per month in pendente lite spousal support and \$10,000 in attorney fees.
- 4) On 1/29/2026, Petitioner filed an Income and Expense Declaration, which includes the following information:
 - a. Filing Status: Married filing jointly; 2 exemptions
 - b. Other Party's Income: Blank
 - c. Average Monthly Income: (Unemployed since 3/11/19 – Alleges housewife entirety of marriage.)
 - d. Cash and checking accounts: Blank

1 e. Total Expenses: \$4,500.00/month (Proposed Needs)

2 f. Attorney Fees Paid: \$6,500.00/month.

3 5) On 3/3/26, Respondent filed a Response and Request for Nullity indicating the date of marriage is
4 3/11/19 and date of separation is 10/3/25 for a marriage of 5 years and 6 months.

5 6) On 3/3/26, Respondent filed an Income and Expense Declaration, which includes the following
6 information:

7 a. Filing Status: Married filing jointly; 2 exemptions

8 b. Other Party's Income: \$0.00

9 c. Average Monthly Income: \$4200.00/month.

10 d. Cash and checking accounts: \$200.00

11 e. Total Expenses: Blank

12 f. Attorney Fees Paid: Blank

13 7) Respondent did not file a Responsive Declaration.

14 8) At the prior 4/21/26 hearing, the Court ordered, in pertinent part, as follows:

15 a. Petitioner's request for Family Code section 2030 attorney's fees is DENIED.

16 Respondent does not have the ability to pay any of Petitioner's attorney's fees. There
17 does not exist a disparity in access to funds. Respondent's Income and Expense
18 Declarations filed 3/3/26 indicates he has \$200 in "cash and checking accounts," while
19 Petitioner left blank the "cash and checking" section. Accordingly, each party shall bear
20 their own attorney fees and costs.

21 b. The Court GRANTS Petitioner's request for temporary spousal support. In accordance
22 with the XSpouse report attached hereto and incorporated herein, Respondent is obligated
23 to pay Petitioner temporary spousal support in the amount of \$1,465 per month, effective
24 2/1/26.

25 c. Respondent owes Petitioner \$4,395 in temporary spousal support arrears for the period of
26 2/1/26 – 4/30/26. Respondent shall pay Petitioner an additional \$250 per month until this
27 balance is paid in full.

28 d. Commencing 5/1/26, all payments set forth above shall be made by the 1st of every
29 month.

- 1 e. The Court reserves jurisdiction over the issues of temporary spousal support and Family
2 Code section 2030 attorney's fees.
- 3 f. The Court continues the matter to 6/9/26 at 9 AM in Dept. 403.
- 4 g. Respondent shall provide Petitioner's counsel with pay stubs from 2026 by 5/5/26.
- 5 9) On 5/28/26, Respondent refiled a Response and Request for Nullity.
- 6 10) On 5/28/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
7 Order. Respondent requests the Court grant a nullity on the basis of fraud. Respondent believes
8 that Petitioner entered the marriage for reasons other than forming a genuine marital relationship
9 (i.e., immigration status and financial gain). Respondent asserts that spousal support is not
10 justified under these circumstances and asserts that Petitioner is self-supporting.
- 11 11) At the prior 6/9/26 hearing, both parties appeared; Petitioner was represented by counsel and
12 Respondent appeared in pro per. The Court continued the matter to 6/25/26 for the final time to
13 permit Respondent to submit his paystubs to counsel for Petitioner.
- 14 12) On 6/12/26, Petitioner filed an update declaration confirming receipt of Respondent's paystubs.
15 Petitioner requests the Court recalculate temporary spousal support effective 2/1/26 using \$4,716
16 as Respondent's monthly income (instead of \$4,200). Petitioner attached Respondent's paystubs.

17 **B. Findings and Order**

- 18 1) Petitioner's request for modification of temporary spousal support to accurately reflect
19 Respondent's income is GRANTED as the Court reserved jurisdiction over temporary spousal
20 support for Respondent to provide copies of his paystubs.
- 21 2) Effective 2/1/26, and in accordance with the XSpouse report attached hereto and incorporated
22 herein, Respondent shall pay Petitioner temporary spousal support in the amount of \$1,629 per
23 month.
- 24 3) This means that Respondent owes Petitioner a total of \$4,887 in temporary spousal support
25 arrears for the period of 2/1/26 – 4/30/26. Respondent shall pay Petitioner an additional \$250 per
26 month until this balance is paid in full; Respondent shall be credited for any payments towards
27 arrears he made between the 4/21/26 hearing and present.
- 28 4) Commencing 7/1/26, all payments set forth above shall be made by the 1st of every month.
- 29

- 1 5) In so far as Respondent seeks to annul the marriage, such request is not properly before the Court;
2 Respondent may file a new Request for Order.
- 3 6) Respondent is encouraged to seek assistance from the ACCESS Center. Information for
4 contacting the ACCESS Center can be found here: [https://sf.courts.ca.gov/access-legal-self-help-](https://sf.courts.ca.gov/access-legal-self-help-center)
5 center.
- 6 7) The Court will prepare the Findings and Order After Hearing.

2026

	Husband	Wife
Fixed Shares	0	0
Number of children Percent time with NCP Filing status	0.00% MFJIN	0.00% MFJIN
Number of exemptions	1	1
Wages and salary	4716	0
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA

Monthly Figures 2026

GUIDELINE Nets (adjusted)

Husband	4071
Wife	0
Total	4071
Addons	0
Guideln CS	0
S.Clara SS	1629
Total	1629

Support

Settings changed Proposed Tactic 9

CS	0
SS	1629
Total	1629
Saving	0
Releases	0

Monthly Figures

Cash Flow

Guideline Proposed

Combined net spendable	4071	4071
Percent change	0%	0%
Husband		
Payment cost/benefit	-1629	-1629
Net spendable income	2443	2443
Change from guideline	0	0
% of combined spendable	60%	60%
% of saving over guideline	0%	0%
Total taxes	645	645
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	3889	3889
Wife		
Payment cost/benefit	1629	1629
Net spendable income	1629	1629
Change from guideline	0	0
% of combined spendable	40%	40%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Husband pays Guideline SS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband